(3) if a hole containing explosives is discovered, the drilling shall be carried out in accordance with section 8.6.6 (1).

8.7.4 Where it is impracticable to make the examination required by section 8.7.3 (1), or use an offset pattern as per 8.7.3 (2), a remotely controlled drilling procedure shall be employed.

Misfires

Surface Misfires

8.8.1 (1) A misfired hole on the surface shall be clearly marked off for a distance of 8 m around the collar of the hole.

(2) The use of equipment shall be restricted within this 8 m distance except as provided in section 8.7.1, or under a procedure approved by the inspector.

Time to Return

8.8.2 No person shall return or be allowed to return to the scene of a blast until the following times have elapsed

(1) when a blast is initiated with safety fuse assemblies, after a number of minutes equal to 7 times the number of metres in the longest fuse used,

(2) when safety fuse is involved and a misfire occurs, or is suspected, and after a reblast, a minimum of 30 minutes, and

(3) when no safety fuse is involved and a misfire is suspected, or when two or more detonators are used and the blaster cannot visually establish that all shots have fired, a minimum of 10 minutes from the time the blasting cable was disconnected and short circuited.

Inspection Before Abandoning

8.8.3 The shiftboss shall ensure that an underground development heading is not abandoned, or work discontinued, until material broken in the last round has been cleared from the face of the heading and the face has been examined for holes or sockets containing explosives.

Removal and Disposal

Removal of Explosives

8.9.1 No person shall take away or attempt to take away explosives, detonators, or fuse from a mine except as provided for in sections 8.9.2 and 8.9.3.

8.9.2 Explosives shall be removed or destroyed prior to the closure of a mine.

8.9.3 Section 8.9.1 does not apply

(1) to an explosive plant at a mine, operated under a licence issued by the Explosives Branch, E.M.R. (Canada), or

(2) if explosives are being returned to a registered explosives vendor, or

(3) if explosives are taken from the mine for a purpose authorized by the inspector.

Adjacent Workings

Blasting at Adjacent Mines

8.10.1 Where parties are working on adjacent surface mines or underground mines having connected workings, they shall agree to a mutually acceptable blasting time and procedure.

Connection to Existing Workings

8.10.2 When an active heading is within 8 m of another mine opening or drill hole, the shiftboss shall before any round is fired

(1) make a thorough examination of the other mine opening, drill hole collar or the nearest point of intersection,

(2) satisfy the shiftboss that the heading can be advanced in a safe manner, and

(3) ensure that any access to the nearest point of intersection with the other opening or drill hole is guarded.

Underground Coal Mines

Permitted Explosives

8.11.1 Only explosives authorized by the chief inspector, shall be taken or used, underground in a coal mine.

Mines Subject to Outbursts

8.11.2 Explosives shall not be used in any part of an underground coal mine liable to outbursts of flammable gas without the written permission of the inspector.

Non-combustible Stemming

8.11.3 In an underground coal mine, all charged shot holes shall be stemmed with a suitable non-combustible material before they are fired.

Taking Explosives Underground

8.11.4 In an underground coal mine, explosives shall not be

(1) stored or kept in the mine, except when required for rockwork, or when millisecond delay detonators are used and then only with the written permission of the inspector, and

(2) taken into the mine, except in an explosive container approved by the inspector, holding not more than 2 kg of explosives.

Procedures for Shot Firing

8.11.5 When explosives are used in an underground coal mine, the blaster shall

(1) check that each hole is properly drilled and thoroughly cleaned,

(2) examine the area within 25 m of the hole to verify that it has been adequately treated with an approved incombustible dust, that the ventilation is normal, and that the level of flammable gas is less than 1%, and

(3) after firing the shots, inspect the area, including any electric cables, to satisfy the blaster that conditions are safe before allowing any other persons to enter the area. The blaster may be accompanied by one other person while carrying out the inspection.

Drilling for Reblasting

8.11.6 When a charge has misfired in a coal mine and another hole is required for reblasting, the shotfirer shall be responsible for directing the angle of the new drill hole, which shall be not less than 650 mm from the original hole.

Lighting and Power Circuits Not to Be Used

8.11.7 When shotfiring in an underground coal mine

(1) current from lighting or power circuits shall not be used for firing shots, and

(2) electric power shall be cut off to the workplace when shots are being fired and not switched on again until the inspection required by section 8.11.5 (3) has been completed.

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Application

9.1.1 This part applies to persons engaged in mineral and coal exploration activities under the authority of the *Mines Act*.

9.2.1 Repealed.

Health & Safety

9.3.1 Repealed.

9.3.2 Repealed

9.3.3 Repealed.

Uranium & Thorium

9.3.4 Unless the chief inspector permits otherwise, where standard assay results are expected to show, or are expected to show uranium mineralization in a grade of 0.05% by weight or greater or thorium mineralization in a grade of 0.05% by weight or greater, the owner, agent or manager shall ensure that

(a) all drill holes must be completely sealed with concrete on completion of exploration,

(b) all practicable precautions are taken to ensure no drilling fluid, water or drill cuttings contaminate any drinking water supply, irrigation water supply, or surface water,

(c) all persons working at the exploration site are provided with a gamma radiation dosimeter of an approved type, and

(d) no person is exposed to a whole body dose of more than 5 millisieverts in a 12 month period.

Induced Polarization Geophysical Survey Systems

9.3.5 (1) The manager must ensure that, where an induced polarization geophysical survey system is being operated,

(a) energized wires are sufficiently insulated to prevent electric shock,

(b) induced polarization electrodes have visible warning stickers stating “Danger – High Voltage”,

(c) signs are posted to warn other persons who may enter the area, and

(d) a continuous and consistent means of communication is provided to every member of the crew whose movements are out of sight and sound of the other crew members.

(2) The manager must ensure that all wires and signs used during the survey work described in subsection (1) are removed from the site after the survey work is completed.

(3) The manager must ensure that electric blasting activities are coordinated with active induced polarization and active electromagnetic survey work.

9.3.6 Repealed.

Community Watersheds

9.4.1 The manager must ensure that exploration activities in community watersheds are carried out in a manner that

(a) maintains surface and subsurface drainage patterns within the range of natural variability,

(b) protects stream channel stability, and

(c) does not degrade water quality at a potable water supply intake so that it fails to meet the potable water requirements of the *Drinking Water Protection Act* and regulations as amended from time to time.

Notification Requirements

9.4.2 The owner, agent or manager responsible for exploration activities in a community watershed must ensure that,

(a) at least 48 hours before the start date of the exploration activities, the water license holder of record or the representative of record is notified,

(b) before commencing the exploration activities, a contingency plan is in place to restore potable water in the event those activities adversely impact potable water quality or quantity, and

(c) if the exploration activities adversely impact potable water quality or quantity, those activities are immediately ceased and remedial action taken.

Riparian Management

Table 9-1

Riparian Setback Distances
(Measured horizontally from the top of bank)

Column 1 Riparian Type		Column 2 Helicopter Supported Drilling (m)	Column 3 Ground Based Drilling, Trenching & Exploration Access (m)
Stream	**Stream Width (m)**		
	>100*	50	100
	>20 – ≤100	50	70
	>5 – ≤20	30	50
	>1.5 – ≤5	20	40
	≤1.5	5	30
	<0.5 in alpine areas above timberline	5	15
Wetland	**Wetland Size (ha)**		
	>5	10	50
	>1.0 – ≤5.0	10	30
	>0.25 – ≤1.0	10	30
	≤0.25	10	10
	wetland complexes	10	50
Lake		10	30

*if the stream averages, over a 1 km length, either a stream width or an active flood plain width of 100 m or greater.

Riparian Setbacks

9.5.1 (0.1) The manager must ensure that the riparian setback distance for each watercourse set out in Table 9-1 is measured horizontally from the natural boundary.

(1) The following activities may be carried out within the setback distances noted in Table 9-1

(a) construction, maintenance, deactivation and reclamation of stream crossings;

(b) access from water landings for the purpose of servicing exploration camps and equipment;

(c) access to set up and service water supply pumps and lines; and

(d) access to service drill sites.

(2) Exploration activities in addition to those in subsection (1) may occur within the riparian setback distances noted in Table 9-1 when one or more of the following conditions apply
   (a) no other practicable option exists;
   (b) risk to health and safety can be reduced; or
   (c) risk of adverse impact to the environment can be reduced.

(3) When there is an intent to operate within the riparian setback distances noted in Table 9-1 pursuant to subsection (2), the owner, agent or manager must ensure that a management plan is prepared for, and approved by, an inspector and the plan must show how the proposed activities will to the extent practicable
   (a) maintain the integrity of the stream, lake or wetland;
   (b) prevent the introduction of deleterious substances into a stream, lake or wetland; and
   (c) minimize the disturbance caused by the activity.

Soil Conservation

9.6.1 The manager must ensure that exploration activities are carried out in the following manner:
   (a) soil loss is minimized so that the site can be reasonably reclaimed to support appropriate self-sustaining vegetation;
   (b) all available soil and coarse woody debris in the disturbance area are salvaged and stockpiled for use in reclamation;
   (c) salvaged and stockpiled materials are protected from erosion, degradation and contamination.

Terrain

9.7.1 (1) The manager must ensure that exploration activities are designed and implemented in a way that minimizes the risk of those activities causing any of the following events
   (a) landslide,
   (b) channelized debris or mud flow,
   (c) gully bank destabilization,
   (d) debris fan,
   (e) snow avalanche, or
   (f) destabilization of an alluvial fan.

(2) If an exploration activity causes an event as set out in subsection (1), the owner, agent or manager must ensure that
   (a) necessary steps are taken immediately to protect human life and safety, and

(b) as soon as practicable,
  (i) any disturbed areas are stabilized, and
  (ii) the event is reported to an inspector.

(3) If an exploration activity causes an event as set out in subsection (1) and that event
  (a) places human life or safety at risk,
  (b) damages property or infrastructure,
  (c) adversely affects water quality or flow or damages water supply infrastructure,
  (d) results in harmful alteration to fish habitat, or
  (e) results in harmful alteration of regionally significant wildlife habitat,

the owner, agent or manager must ensure that a remediation plan acceptable to an inspector is prepared by a qualified professional within 30 days of the start of the event and the plan is implemented within the time frame specified by the inspector.

Water Management

9.8.1 The manager must ensure that where exploration activities or exploration access may impact the natural surface and subsurface drainage of an area, structurally sound, functional and stable drainage systems are constructed in a way that minimizes
  (a) water flowing uncontrolled onto the exploration site,
  (b) erosion or destabilization of the exploration site,
  (c) water being directed onto, or creating, potentially unstable slopes or soil materials, and
  (d) water flowing onto reclaimed areas unless the reclaimed areas are protected with the use of riprap or other effective means or the water flow is an integral part of the reclamation program.

Fuel & Lubricants

9.9.1 (1) The owner, agent or manager must ensure that liquid hydrocarbon products are stored in a manner that minimizes the possibility of accidental discharge to the environment.

(2) Unless authorized by an inspector, the owner, agent or manager must ensure that liquid hydrocarbon products are not stored within 30 m of a watercourse.

(3) The manager must ensure that ground-based machinery is not fueled or serviced within the riparian setback distances set out under Column 3 of Table 9-1, other than
  (a) pumps, or

(b) machinery that is
  (i) hand held,
  (ii) required for firefighting,
  (iii) broken down and requiring fueling or servicing to be moved, or
  (iv) authorized by an inspector to be fueled or serviced in the area.

(4) The owner, agent or manager must ensure that all liquid hydrocarbon containers, whether empty or full, are removed from every exploration site by the end of each field season, unless otherwise authorized by an inspector.

Exploration Access

9.10.1 (1) The owner, agent or manager must ensure that construction, maintenance, deactivation and reclamation of exploration access and bridges or any other form of a stream, lake or wetland crossing results in exploration access and crossings that are stable, safe for the intended use, and which
(a) minimize erosion, mass wasting or the degradation of a stream, lake or wetland by the introduction of sediment, debris or deleterious substances,
(b) minimize adverse impacts on stream channels,
(c) make provision for drainage systems that maintain stability of the road prism,
(d) do not cause harmful alteration, damage or destruction of fish habitat, and
(e) has the minimum surface disturbance necessary to complete the proposed work.

(2) The owner, agent or manager must ensure that the clearing of standing timber does not exceed the minimum required to accommodate the road prism, user safety and other operational requirements.

(3) The owner, agent or manager must ensure that material known to be capable of generating acid rock drainage is not used for exploration access surfacing or ballasting unless approved by an inspector.

(4) The owner, agent or manager must ensure that exploration access does not interfere with the subsurface flow of a drainage area that contributes to a water supply used for licensed domestic consumption unless
(a) there is no other practicable option, and
(b) the impacts of the access construction can be mitigated.

(5) The owner, agent or manager must ensure that a program is developed and implemented to routinely monitor and maintain exploration

access so that the exploration access is stable and safe for the intended use until it is reclaimed to the satisfaction of an inspector.

(6) The owner, agent or manager must ensure that the deactivation of exploration sites and access results in
   (a) stabilization of the exploration site, access road prism and clearing widths,
   (b) restoration or maintenance of drainage patterns, and
   (c) minimization of soil erosion to the extent practicable.

(7) The owner, agent or manager must ensure that reclamation of exploration access results in
   (a) restoration of drainage patterns to as close to natural predisturbance conditions as possible,
   (b) removal of bridge superstructures,
   (c) removal of bridge substructures if failure would affect downstream values,
   (d) removal of all culverts,
   (e) a stable surface that minimizes future erosion, which may include recontouring if so directed by an inspector, and
   (f) the establishment of self sustaining vegetation appropriate for the site which may include reforestation if so directed by an inspector.

(8) The manager must ensure that stream crossings are constructed, maintained, deactivated and reclaimed in a manner that allows safe fish passage and protects fish habitat at, above and below the stream crossing.

(9) The manager must ensure that stream crossings on streams that are not fish streams are constructed, maintained, deactivated and reclaimed in a manner that does not adversely affect downstream fish values.

(10) The owner, agent or manager must ensure that bridge design, fabrication and installation are certified or approved by a qualified professional.

(11) The owner, agent, or manager must ensure that
   (a) metal and concrete bridges are inspected by a qualified professional at least once every three years, and other bridges at least once every two years, or as prescribed by the designer,
   (b) inspection records are maintained for the life of any bridge structure, and
   (c) any deficiencies identified during an inspection referred to in paragraph (a), or identified in any other way, are
      (i) addressed immediately, if they pose a significant risk to public or worker safety or the environment, or

(ii) corrected as soon as practicable, if subparagraph (i) does not apply.

(12) The owner, agent or manager must ensure that bridges, stream culverts and their approaches are designed, constructed and maintained to pass the peak flows set out in Table 9-2.

(13) Despite subsection (12), a temporary bridge or stream culvert may be constructed at a crossing to meet the expected flow during the period of use if

(a) the stream is not a fish stream,

(b) the installation and use will be in a period of low seasonal stream flows, and

(c) the culvert or temporary bridge is removed before the period of high seasonal stream flows.

TABLE 9-2

MINIMUM DESIGN PEAK FLOW

CROSSING TYPE	RETURN PERIOD (years)
Permanent bridges	100
Temporary bridges	50
All stream culverts	100

Drilling

9.11.1 (1) The owner, agent or manager must ensure that drill sites are not located

(a) within a stream,

(b) within a lake or wetland unless a management plan, including provision for management of drilling discharge, has been approved by an inspector, or

(c) Repealed.

(d) within a riparian setback area as defined in Table 9-1, unless

(i) authorization has been obtained pursuant to the provisions of sections 9.5.1 (2) and 9.5.1 (3), and

(ii) management plans include provision for management of drilling discharge.

(2) An owner, agent or manager must ensure that pumps and pump fuel supplies use absorbent mats and containment devices to prevent spilled liquid hydrocarbons from escaping.

(3) Unless otherwise authorized by an inspector, the owner, agent or manager must ensure that practicable measures are taken during exploration drilling operations that

(a) effectively manage the flow of drilling discharge to a sump or containment, and

(b) minimize the impact on streams, wetlands or lakes.

(4) The owner, agent or manager must ensure that appropriate emergency spill kits are readily available at all active drill and water supply pump sites.

(5) Despite subsections (5.1) and (5.2), the owner, agent or manager must ensure that groundwater does not flow from completed exploration drill holes without the written authorization of an inspector.

(5.1) Unless otherwise authorized in writing by an inspector, the owner, agent or manager must ensure that

(a) within one year of cessation of exploration activities, exploration drill holes are effectively sealed, and

(b) before abandoning the exploration drill holes, each one is

(i) decommissioned,

(ii) effectively sealed below ground level, and

(iii) covered with soil, if soil is available in the local area, or, if soil is not available, with other material in the local area.

(5.2) Subsection (5.1) does not apply to an exploration drill hole if, on or before June 22, 2026, the exploration drill hole was

(a) decommissioned, or

(b) not required to be sealed by condition of a permit.

(6) Repealed.

(7) The owner, agent or manager must ensure that, for exploration drilling operations in coal or coal-bearing formations,

(a) measures are taken to manage the risk of loss of control of an exploration drill hole due to an uncontrolled release of pressurized fluids,

(b) safe operating procedures

(i) are developed by a qualified professional, implemented and made available to an inspector on request, and

(ii) include the following matters:

(A) gas detection and monitoring, including for flammable and toxic gases;

(B) any preventative equipment to be used to divert gases or prevent the uncontrolled release of pressurized fluids;

(C) training requirements for field and drilling personnel regarding procedures, assignment of responsibilities and operation of monitoring and preventative equipment;

(D) requirements and procedures for decommissioning, which may include capping or cementing, to ensure

that fluids will not leak from the exploration drill hole, and

(c) if control of an exploration drill hole is lost or compromised, all actions necessary must be taken without delay to safely bring the exploration drill hole under control.

Camps

9.12.1 (1) The manager must ensure that an exploration camp required to support future exploration activities is left in a clean and safe condition and where practicable secured from wildlife access at the end of each field season.

(2) The manager must ensure that an exploration camp not required to support future exploration activities is dismantled, removed and the site reclaimed, unless otherwise exempted in writing by an inspector.

(3) The manager must ensure that, before leaving a camp for the season or reclaiming a camp site, all refuse and animal attractants are properly disposed of or removed from the site.

Waste and Refuse

9.13.01 The owner, agent or manager must ensure that, on cessation of exploration activities, all waste and other refuse is disposed of properly.

Reclamation

9.13.1 (1) Reclamation of mechanically disturbed sites, campsites and exploration access shall occur within one year of cessation of exploration unless authorized in writing by an inspector.

(2) Pits and trenches shall be backfilled and reclaimed prior to abandonment, unless

(a) the sides of the pit or trench are sloped to a stable and safe angle as determined by a qualified person, or the pit or trench is fenced to prevent inadvertent access, and

(b) there is a means of egress.

(3) Appropriate measures shall be taken to minimize the establishment of noxious weeds and the erosion of exposed or disturbed soil.

(4) Exploration sites shall be revegetated to a self-sustaining state with species appropriate for the site.

(5) The results of reclamation measures shall be reported to an inspector upon completion of the reclamation work.

(6) Where a security deposit has been posted for reclamation, the owner, agent or manager may apply to an inspector in writing for a refund

of the security deposit when the reclamation program has met the requirements of this code.

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Mine Plan and other Plans

Preparation of Plans

10.1.1 The owner, agent or manager must ensure that the mine plan, reclamation plan, closure plan and any plans related to the protection of the environment, which are required to be developed, made or updated under this Part, are

(a) prepared taking into consideration the health and safety of the public and persons involved in the work,

(b) designed to make it as practicable as possible in the future to mine zones affected by the plan,

(c) designed to protect the land and watercourses, and

(d) prepared by qualified professionals or qualified persons, except as otherwise set out in Part 10.

Proposed Placer Mines, Gravel Pits and Quarries

10.1.2 (1) The proposed mine plan and reclamation program filed with the inspector in compliance with section 10 (1) of the *Mines Act* must consist of the appropriate Notice of Work forms, together with such other information as the inspector may require, for approval of placer mining, sand and gravel pits, rock quarries and industrial mineral quarries. Proposed Exploration Activities

(2) No work may proceed without the inspector granting a permit or authorization or the chief permitting officer granting an exemption under section 10 (2) of the *Mines Act*.

Proposed Exploration Activities

10.1.3.1 (1) Prior to undertaking exploration activities and pursuant to section 10 of the *Mines Act*, the owner, agent, manager or any other person must submit to an inspector a Notice of Work, unless otherwise directed by the chief permitting officer, which must include

(a) information required pursuant to the *Mines Act* and this code and any other information as directed by an inspector,

(b) maps and schedules of the proposed exploration activities,

(c) tenure information relevant to the exploration activities, and

(d) details of actions designed to minimize any adverse impacts of the proposed activities.

(2) A copy of all permits and authorizations issued with respect to the exploration activities must be maintained at the mine while exploration activities are taking place.

(3) An annual summary of exploration activities, as directed by the chief permitting officer, must be submitted by March 31st of the following year.

Permit Application

Permit Application

10.2.1 (1) The owner, agent or manager must submit in writing an application to the chief permitting officer for a permit under section 10 (1) of the *Mines Act* for

(a) surface or underground development or production for coal and mineral mines, or major expansions or major modifications of existing producing coal and mineral mines, or

(b) underground exploration requiring excavation, large pilot projects, bulk samples, trial cargos or test shipments.

(2) No work may proceed without the chief permitting officer granting a permit or authorization.

(3) The chief permitting officer must determine the number of copies of the application required.

Application Requirements

10.2.2 The application referred to in section 10.2.1 (1) of this code must include the following unless otherwise authorized by the chief permitting officer:

(a) a regional map showing the location of the mine property, along with a map or air photo showing the location and extent of the mine;

(b) the present use and condition of the land and watercourses including

(i) land ownership, including surface and mineral rights, licensed or permitted users such as water users, guides, outfitters and trappers and grazing licenses,

(ii) climate,

(iii) general geology and detailed geological descriptions of the deposit,

(iv) surface water and groundwater quality and flow,

(v) fisheries and aquatic resources,

(vi) air quality,

(vii) surficial geology and terrain mapping,

(viii) soil survey and soil characterization,

(ix) vegetation,

(x) wildlife,

(xi) land capability and present land uses such as agriculture, forestry, fisheries, wildlife, recreation, industrial, commercial and residential, and

(xii) inhabited places in the vicinity of the mine;

(c) established and asserted aboriginal and treaty rights;

(d) a mine plan including
  (i) a map at a scale of 1:10,000 or less showing topographic contours, surface drainage features, claims, leases or licenses, buildings, roads, railways, power transmission lines, pipelines and other relevant features and the locations of all proposed or existing surface and underground mining developments, waste disposal areas, stockpiles, processing facilities, mine buildings and other mining related disturbances or infrastructure,
  (ii) an inventory of areas disturbed to date and projected over the next 5 years and over the projected life of the mine,
  (iii) descriptions of mining methods, mining rates, projected mine life, processing methods and infrastructure requirements,
  (iv) development schedule for construction and mine sequencing,
  (v) detailed geology and ore reserves, projected volumes of ore and waste to be produced and relative time of production,
  (vi) designs and details for dumps, open pits, impoundments, underground workings including areas that may be affected by subsidence, stockpiles, processing facilities, water management structures, water storage and water treatment facilities, haulage roads, road construction and significant transportation or utilities infrastructure that are compatible with environmental protection, reclamation and mine closure,
  (vii) designs and details for tailings storage, including a design report for each TSF and dam as set out in section 10.5.3,
  (viii) designs for material handling and waste disposal procedures,
  (ix) salvaging and stockpiling of surface soils and overburden materials,
  (x) source, use and water balance for any water required in the operation,
  (xi) overall site water balance as set out in section 10.6.7 (1), and
  (xii) a traffic control procedure as required under section 6.8.3;
(e) a program for the environmental protection of land and water courses during the construction and operational phases of the mining operation, including plans for
  (i) prediction, identification and management of physical, chemical and other risks associated with tailings storage facilities and dams,
  (ii) prediction, and if necessary, prevention, mitigation and management of metal leaching and acid rock drainage,

(iii) erosion control and sediment retention, and
(iv) environmental monitoring and surveillance designed to demonstrate that
(A) the objectives of section 10.1.1 (a) to (c) are being met,
(B) the reclamation standards as outlined in sections 10.9.4 to 10.9.21 are being met, and
(C) environmental protection of land and watercourses required under paragraph (h) (i) and (ii) of this section are being achieved and maintained;

(f) an alternatives assessment for the proposed tailings storage facilities that assesses best available technology;
(g) a failure and breach or runout assessment as set out in section 10.5.5;
(h) a conceptual reclamation plan for the closure or abandonment of all aspects of the mining operation, including,
(i) plans for long term post-closure maintenance of facilities, and
(ii) proposed use and capability objectives for the land and watercourses;
(i) the closure design report for each TSF or dam developed under section 10.6.12 (1);
(j) an estimate of the total expected costs of outstanding reclamation obligations over the planned life of the mine, including the costs of long-term monitoring and maintenance which, with the approval of the chief permitting officer, may be filed in a separate confidential report;
(k) any other relevant information required by the chief permitting officer.

Underground Openings and Workings

10.2.3 (1) The manager must ensure that tailings storage facility designs that use underground openings meet the requirements of section 10.5.10 (1).

(2) The manager must ensure that tailings storage facility designs take into account the potential effects on, and interactions with, underground workings.

Major Dumps

10.2.4 The manager must ensure that a major dump is designed
(a) in consideration of the Interim Guidelines of the British Columbia Mine Waste Rock Pile Research Committee, and
(b) to allow for re-contouring such that final reclamation is consistent with the approved end land use.

Metal Leaching and Acid Rock Drainage

10.2.5 The manager must ensure that plans for the prediction, and if necessary, the prevention, mitigation and management of metal leaching and acid rock drainage is prepared in consideration of the Guidelines for Metal Leaching and Acid Rock Drainage at Minesites in British Columbia.

Mine Development Review Committee

10.2.6 (1) The chief permitting officer may refer to the advisory committee or the regional advisory committee established pursuant to section 9 of the *Mines Act*,

(a) applications submitted under section 10.2.1 of this code, and

(b) any Notice of Work submitted under section 10.1.2 of this code.

(2) The advisory committee or regional advisory committee must review every application referred to them under subsection (1) and make recommendations to the chief permitting officer within 60 days following application.

(3) If no recommendations under subsection (2) have been received within 60 days, the chief permitting officer will deem that there are no concerns.

Circulation of Application

10.2.7 (1) If a permit application under section 10.2.1 is not referred to a committee for review under section 10.2.6, an inspector may circulate it to other ministries and agencies and they have 30 days following referral to make written representations to the inspector.

(2) If no written representations under subsection (1) have been received within 30 days, the inspector will deem that there are no concerns.

Permit

10.2.8 Before issuing a permit under section 10 (1) of the *Mines Act*, the chief permitting officer must consider the following:

(a) any recommendations made by a committee under section 10.2.6 of this code;

(b) any written representations received under section 10.2.7 of this code;

(c) any written representations received under section 10.3.2 of this code.

Departure from Approval

10.2.9 The owner, agent or manager must notify the chief permitting officer in writing of any intention to depart, to any substantial degree, from the mine plan and reclamation program authorized under section 10.1.2 or section 10.2.1 and must not proceed to implement the proposed changes without the written authorization of the chief permitting officer.